

DECISIONS · 10 JUN 1998

Aix Court of Appeal

TYPE	DATE	PARTIES
Procedural document (notice of appeal)	10 Jun 1998	Bernard Collorafi v. McDonald's France

SUMMARY SHEET

Notice of appeal · 10 June 1998

Overview: notice of appeal lodged on 10 June 1998 by the companies SEBOL (SA), B et O (SARL) and LES PINS (SARL), and by Mr Bernard Collorafi, against SA McDonald's France, whose registered office is in Guyancourt.

Key points

The appeal is directed against the judgment delivered on 18 May 1998 by the Paris Commercial Court (1st chamber). The document recalls the operative provisions of this first-instance decision, which declares the termination of the lease-management (location-gérance) and licence agreements, orders the eviction of the three companies and of Mr Collorafi from the fast-food businesses located in Antibes and Juan-les-Pins, and the return of the premises, keys and documents to the owner, subject to a periodic penalty. The decision further orders the appellants to pay McDonald's substantial sums in respect of unpaid fees and occupation indemnities, plus a sum under article 700 of the NCPC.

Significance

A document opening the route of appeal before the Court of Appeal against the enforcement measures ordered at the franchisor's request.

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Source: bernardcollorafi.org/en/documents/notice-of-appeal-aix-court-of-appeal-collorafi-mcdonalds-eviction-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.